

26CHCV02379 26CHCV02379

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26CHCV02379 Hearing Date: August 10, 2026 Dept: F43

Dept. F43

Hearing Date: 08-10-26

Case # 26CHCV02379, Mateyko v. Mateyko

Trial Date: None set.

MOTION FOR SUMMARY

JUDGMENT

MOVING PARTY: Defendant Raymond Mateyko, Trustee of the
Raymond Mateyko Living Trust, in pro per

RESPONDING PARTY: Plaintiff Laurie Mateyko, in pro per

RELIEF REQUESTED

Order granting summary judgment for defendant
on plaintiff's complaint.

RULING: Motion is denied without prejudice.

SUMMARY OF ACTION

On June 12, 2026, plaintiff Laurie Mateyko (Plaintiff)
filed this action seeking to prohibit defendant Raymond Mateyko, Trustee of the
Raymond Mateyko Living Trust from evicting her from property located at 21115

Chase Street in Canoga Park, CA (the Property).

Plaintiff asserts a violation of Civ. Code, § 789.3 (unlawful lockout), wrongful eviction, conversion, and trespass to chattels. No answer was filed.

On June 16, 2026, the court granted Plaintiff a temporary restraining order, directing Defendant to immediately restore Plaintiff's possession of and access to the Property, to refrain from interfering with, obstructing, or denying Plaintiff access to the Property, to refrain from selling, transferring, or giving any of Plaintiff's property at the Property, and to refrain from re-locking, re-securing, or otherwise excluding Plaintiff from the Property.
(6/6/2026 Minute Order.)

On June 30, 2026, Plaintiff and Defendant appeared at a hearing where the court scheduled the Case Management Conference for August 14, 2026. (06/30/2026 Minute Order.) Both parties are self-represented.

On July 13, 2026, Defendant filed the instant motion for summary judgment on the complaint. Plaintiff filed an objection to the motion on July 20, 2026. No reply was filed.

On July 28, 2026, Plaintiff filed a request for entry of default as to Defendant, which the Clerk of Court granted that same day. (07/28/2026 Minute Order.) A copy of the request was mailed to Defendant that same day. (Id. at p. 2.)

SUMMARY OF ARGUMENTS

Defendant contends the undisputed evidence demonstrates Plaintiff cannot establish a landlord-tenant relationship exists because the Plaintiff never entered a written or oral lease agreement. Without establishing this relationship, Plaintiff cannot prove her claims.

In opposition, Plaintiff contends the motion is premature because it was filed 31 days after Plaintiff's general appearance and the motion is procedurally improper because Plaintiff was never

served. Furthermore, the supporting declarations were served in advance as templates, the undisputed material facts misrepresent the supporting declarations, and the Defendant is currently in default.

ANALYSIS

A. Motion for Summary Judgment

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.”

(Aguilar v. Atl. Richfield Co.

(2001) 25 Cal.4th 826, 843.) “Code of

Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

1. Defendant’s

motion is invalid because the motion was filed before the 60-day cutoff, the noticed hearing is scheduled to occur before the 60-day cutoff.

A party cannot file a motion for summary judgment until at least “60 days have elapsed since the general appearance” of the party against whom the motion is directed, unless the court allows an earlier motion based on a showing of “good cause.” (Code Civ.

Proc., § 437c, subd. (a)(1).) A

Plaintiff makes a general appearance in an action when the plaintiff files a complaint. (See State v. Lyons (1885)

67 Cal. 380, 384 [“The plaintiff appears when he files his complaint, subscribed by himself or his attorney.”]; Mansour v. Superior Court (1995)

38 Cal.App.4th 1750, 1756 [“A general appearance occurs where a party, either directly or through counsel, participates in an action in some manner which recognizes the authority of the court to proceed.”].)

Plaintiff generally appeared in this action when she

filed her complaint on June 12, 2026. Because 60 days from June 12, 2026, is August 11, 2026, Defendant's motion is early. A trial court may still consider a motion for summary judgment that filed less than 60 days after the plaintiff's general appearance if the hearing at which the motion is made occurs after the 60-day period. (See *Sadlier v. Superior Court* (1986) 184 Cal.App.3d 1050, 1054-1055 ["[W]hen as in this case under section 437c the motion must be 'made' after rather than before a certain date, we do not believe that [Code of Civil Procedure] section 1005.5 was intended to deprive a party of a right to a hearing on that motion if either the filing or the hearing at which the motion is made occurs after the 60-day period."].) If a motion is heard after the 60-day period, it satisfies section 437c regardless of when it was filed, and no exercise of discretion or good cause finding is required.

Here, the motion was filed before the 60-day period and the hearing is scheduled before the 60-day period. Furthermore, Defendant's motion fails to make a showing or argument for "good cause." Thus, the motion is invalid due to being premature.

2. Defendant's motion is procedurally deficient because Defendant failed to timely file and serve the motion.

"Notice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing. If the notice is served by mail, the required 81-day period of notice shall be increased by 5 days if the place of address is within the State of California, 10 days if the place of address is outside the State of California but within the United States, and 20 days if the place of address is outside the United States. If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days." (Code Civ. Proc., § 437c, subd.

(a)(2).) "An opposition to the motion shall be served and filed not less than 20 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise." (Code Civ. Proc., § 437c, subd. (b)(2).) "Proof of service of the moving papers must be filed no later than five court days before the time appointed of the hearing. (Cal. Rules of

Court, rule 3.1300(c).)

Here, Defendant filed his motion 28 days before the noticed hearing date (August 10, 2026).

And the moving papers do not demonstrate Defendant ever served the motion and supporting papers on Plaintiff, potentially depriving Plaintiff of an opportunity to review and meaningfully respond to Defendant's arguments by the opposition deadline (July 21, 2026).

Plaintiff claims she was never served with the moving papers. However, Plaintiff was able to file and serve her opposition one day before the opposition deadline and to address both the procedural and substantive defects. Plaintiff does not state how she learned about the motion. By addressing both procedural and substantive issues, Plaintiff may have waived the procedural defects and precluded the court from denying or continuing Defendant's motion.

A party waives any claim of inadequate service or notice when the party files an opposition to a motion for summary judgment, appears and argues at the motion hearing, never requests a continuance, and never claims prejudice by reason of the defective service or inadequate notice. (Carlton v. Quint (2000) 77 Cal.App.4th 690, 696-698.)

Here, Plaintiff attacks the procedural issues across all Defendant's filings, Defendant's evidence and statement of undisputed material facts, and asks the court to strike the motion, order the motion off-calendar, or deny the motion without prejudice as premature and unserved. As such, the court finds that Plaintiff has not waived the procedural defects related to Defendant's untimely motion.

Regardless, the court finds that the motion is procedurally defective because Defendant did not timely file or provide proof that the moving papers were served on Plaintiff.

3. The

court denies Defendant's motion because default has been entered against Defendant for failing to file and serve any of the enumerated pleadings in Code of Civil Procedure section 585, subdivision (b).

The clerk must enter a defendant's default upon written application of the plaintiff if the defendant has been served and has not filed

an answer, demurrer, notice of motion to strike, notice of motion to transfer, notice of motion to quash, a motion to dismiss, or other designated motion within the time specified in the summons.
(Code Civ. Proc., § 585, subd. (b).)

“A motion for summary judgment is not a pleading under Code of Civil Procedure sections [422.10] and 422. Nor is it mentioned among the motions which preclude entry of default judgment under Code of Civil Procedure section 585.” (Barragan v. Banco BCH (1986) 188 Cal.App.3d 283, 299.)
Although “one who moves for summary judgment before filing an answer” has made a general appearance, the general appearance does not prevent entry of default. (See Roy v. Superior Court (2005) 127 Cal.App.4th 337, 341.) Nor does filing a summary judgment motion “extend the time within which a party must otherwise file a responsive pleading.”
(Code Civ. Proc., § 437c, subd. (a)(3).)

Here, Defendant filed his summary judgment motion without first filing an answer or any of the other enumerated pleadings in Section 585(b). Thus, default was properly entered against Defendant on July 28, 2026.
The entry of default terminates a Defendant’s rights to take any further affirmative steps in this matter, and Defendant cannot move forward in this matter without first remedying the issue of the default. (Harbour Vista, LLC v. HSBC Mortgage Services, Inc. (2011) 201 Cal.App.4th 1496, 1502-1506; Mackie v. Mackie (1960) 186 Cal.App.2d 825, 830-832.)

Because the court finds Defendant’s summary judgment motion is plagued by a myriad of procedural issues and Defendant is currently in default, the court denies Defendant’s motion for summary judgment without prejudice.

The court also cautions Defendant to comply with the statutory requirements for filing, notice, and service of the moving papers going forward.

CONCLUSION and ORDER

Motion for summary judgment is denied without

prejudice.

Clerk of the Court to give notice.